

ELIZABETH II



1988 CHAPTER iii

An Act to unite The Middlesex Hospital Medical School, the Institute of Laryngology and Otology, the Institute of Orthopaedics and the Institute of Urology with University College London; to transfer all rights, properties and liabilities from the said school and institutes to University College London; and for connected and other purposes. [9th February 1988]

WHEREAS—

(1) University College London was founded in 1826, with the title “University of London”, under a deed of settlement executed on 11th February 1826; the foundation stone of the then university building was laid on 30th April 1827, and courses of lectures began in October 1828:

(2) In 1836 a Royal Charter was granted, under which the proprietors of the institution then known as the University of London were reincorporated as University College London. On the same day a Royal Charter was granted to

a separate body, to be known as the University of London (hereinafter referred to as "the University") with powers to examine and grant degrees to persons holding certificates of having pursued courses of instruction approved by the University at University College London or elsewhere:

1898 c. 62.
1905 c. xci.

1979 c. xxii.

(3) University College London was admitted as a School of the University in 1900, following the reconstitution of the University as a result of the University of London Act 1898 and was incorporated into the University in 1907 pursuant to the University College London (Transfer) Act 1905 with the title University of London, University College and was subsequently disincorporated from the University by a Royal Charter dated 9th December 1977 and reconstituted as University College London (hereinafter referred to as "the College") by the University College London Act 1979, the rights, properties and liabilities of the University relating to the College being transferred to the College:

(4) University College Hospital grew out of the University Dispensary, which opened in September 1828 and medical classes started there on 1st October 1828; in May 1833 the foundation stone of the North London Hospital was laid on a site in Gower Street opposite the College and in 1837 the name was changed to University College Hospital (hereinafter referred to as "the Hospital"):

(5) In 1898 it was found that the University could no longer conveniently incorporate the Hospital nor that part of the Faculty of Medicine dealing with final medical studies and it was therefore decided that the teaching of final medical studies should be carried out by a new corporation and that the teaching of preliminary and intermediate medical studies should continue in the then University of London, University College premises:

1946 c. 81.

(6) The University College London (Transfer) Act 1905 accordingly provided for the formation of a separate body corporate by the name of North London or University College Hospital for the purposes of carrying on the Hospital and Medical School; from 1907 until 1948 the Hospital and Medical School were administered as one. Following the National Health Service Act 1946 (hereinafter referred to as "the Act of 1946") the said Medical School by a new scheme of incorporation in 1948 became a body corporate with its own governing body having perpetual succession and a common seal and became administered separately from the Hospital as an independent school of the University:

(7) By the University College London Act 1979 the said Medical School was dissolved and ceased to exist as an entity separate from the College and all its property, rights, privileges, debts and liabilities were transferred to the College, the school thereafter being administered as a Faculty of the College:

1836 c. vii.

(8) The Middlesex Hospital was established in or about 1747 and The Middlesex Hospital Medical School was founded in 1835. The Middlesex Hospital was incorporated pursuant to an Act passed on 30th March 1836 entitled "An Act to incorporate the Subscribers to the Middlesex Hospital, and for better enabling them to carry on their charitable Designs" and the said Medical School remained a constituent part of The Middlesex Hospital until 23rd June 1948 when, pursuant to a scheme made under section 15 of the Act of 1946, the said Medical School was reconstituted as a body corporate with its own governing body, having perpetual succession and a common seal and with the main objects of acquiring and carrying on the said Medical School of The Middlesex Hospital for the purpose of the education of students of

medicine and medical science, providing accommodation, equipment and the academic and other staff necessary for the education and practical training of such students, promoting research and providing finance and facilities for the advancement of medical science:

(9) The Institute of Laryngology and Otology was incorporated on 1st February 1951 under the Companies Act 1948 as a company limited by guarantee and not having a share capital with the principal objects of promoting the study of diseases of the throat, nose and ear and allied subjects and initiating, encouraging, supporting and carrying out research and investigation of such diseases and providing education and practical training of duly qualified medical practitioners as specialists in the diagnosis and treatment of diseases of the throat, nose and ear. Its activities are now carried on principally in premises attached to the Royal National Throat, Nose and Ear Hospital, Gray's Inn Road in London: 1948 c. 38.

(10) The Institute of Orthopaedics was likewise incorporated on 1st February 1951 with similar principal objects related to disorders of the locomotor system. The said Institute's activities are now carried on principally in premises attached to the Royal National Orthopaedic Hospitals at Stanmore and Bolsover Street in London and at The Middlesex Hospital:

(11) The Institute of Urology was likewise incorporated on 8th March 1951 with similar principal objects related to diseases of the urinary and genital system. The activities of the said Institute are now carried on principally in premises attached to the St. Peter's Hospitals in Covent Garden in London:

(12) Each of the said Institutes is a Federated Institute and constituent member of the British Postgraduate Medical Federation which is itself a School of the University:

(13) It is the policy of the University that the academic strength and financial viability of the medical schools of the University should be enhanced by the merger of some of those schools:

(14) In 1985 the Report and Recommendations on the Establishment of the University College and Middlesex School of Medicine of University College London was accepted by the University, the College, the said Medical School, the said Institutes and the said Federation and it is expedient that the said Medical School and the said Institutes should be amalgamated with the College in accordance with that report and that their lands, funds and other property should accordingly be transferred to the College:

(15) It is expedient that the other provisions contained in this Act should be enacted:

(16) The objects of this Act cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) This Act may be cited as the University College London Act 1988.

(2) This Act shall come into operation on 1st March 1988.

Citation and
commencement.

Interpretation.

2. In this Act, except where the context otherwise requires, the following expressions have the following meanings respectively, that is to say:—

1946 c. 81.

“the Act of 1946” means the National Health Service Act 1946;

“the appointed day” means 1st March 1988;

“the College” means University College London;

“the existing bodies” means the School and the Institutes, or any of them, as the case may be;

“the Institutes” means—

(a) the Institute of Laryngology and Otology;

(b) the Institute of Orthopaedics; and

(c) the Institute of Urology;

1985 c. 6.

“the registrar” has the meaning given in section 744 of the Companies Act 1985;

“the School” means The Middlesex Hospital Medical School.

Dissolution of existing bodies.

3.—(1) On the appointed day—

(a) the School shall be dissolved and cease to exist and the scheme made pursuant to section 15 of the Act of 1946 constituting the governing body of the School and defining the duties and powers of the School and providing for its management and control shall be revoked; and

(b) the companies incorporating the Institutes shall be dissolved.

(2) The College shall notify the registrar of the effect of paragraph (b) of subsection (1) above and of section 10 below within 14 days beginning with the date of the passing of this Act; and the registrar shall record the dissolution of the companies referred to in that paragraph.

Transfer of property.

4. All property, real and personal, of every description (including things in action) and all rights and privileges which immediately before the appointed day belonged to or were vested in or exercisable by the existing bodies shall on the appointed day, subject to the provisions of this Act, without any conveyance, transfer, assignment or other instrument, be transferred to and vested in, or be exercisable by, the College for all the estate and interest therein of the existing bodies.

Transfer of obligations, etc.

5. All debts and obligations of the existing bodies shall on the appointed day be transferred and attached to the College and shall thereafter be discharged and satisfied by the College.

Saving for agreements, deeds, actions, etc.

6. All agreements, appointments, awards, contracts, deeds and other instruments, and all actions and proceedings and causes of action which immediately before the appointed day were existing or pending in favour of, or against, the existing bodies shall on and after the appointed day continue and may be carried into effect, enforced and prosecuted by, or in favour of, or against, the College to the same extent and in like manner as if the College instead of the existing bodies had been party to, or interested in, the same respectively.

Construction of bequests, etc.

7. Any scheme, will, deed or other instrument, whether made or executed before, on or after the appointed day, which contains any bequest, gift or trust or other benefit in favour of or connected with an existing body shall, on and after the appointed day, be read and have effect as if the College were named therein instead of the body concerned.

8. Any power or right of any of the existing bodies or of any officer or employee of any of them to appoint or nominate a member of any educational authority, or of the governing body of any educational, charitable or other institution, shall on the appointed day be transferred to, and may be exercised by, the College or by the officer or employee of the College who in the opinion of the Council of the College most nearly performs the functions formerly performed by the former officer or employee in question.

Transfer of powers to appoint or nominate.

9. That part of the College constituting its medical school shall henceforth be known by the title "The University College and Middlesex School of Medicine of University College London".

Name of medical school of College.

10. No person other than the College shall, within a period of 25 years after the passing of this Act, without the consent of the College, use the names "The Institute of Laryngology and Otology", "The Institute of Laryngology", "The Institute of Otology", "The Institute of Orthopaedics" or "The Institute of Urology".

Restriction on use of names of existing bodies.



University College London Act 1988

CHAPTER iii

ARRANGEMENT OF SECTIONS

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